

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC053863: ARMANDO LOZANO vs FORD MOTOR COMPANY, et al.
08/18/2026 in Department 44
Demurrer & Motion to Strike

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE,” [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. Ford Motor Company’s Demurrer to Plaintiff’s First Amended Complaint
2. Ford Motor Company’s Motion to Strike Portions of Plaintiff’s First Amended Complaint

Tentative Ruling:

The Court **OVERRULES** the demurrer under the reasoning of *Rattigan v Uber Technologies* ((2024) 17 Cal.5th 1 [holding that fraud claim survives if defendant has a tort duty separate from warranty to refrain from alleged conduct, and if so, where plaintiff can establish elements of tort independent of warranty]) and following the dismissal of the petition for review in *Dhital v. Nissan North America, Inc.* (2022) 84 CA5th 828. In this case the allegations are more detailed than those found to be sufficient in *Dhital*.

As to the Motion to Strike pursuant to Code of Civil Procedure section 436, the Court **GRANTS** Ford’s motion to strike punitive damages **WITH LEAVE TO AMEND**.

The FAC does not contain allegations sufficient support punitive damages with respect to corporate liability. Civil Code § 3294(b) provides that, with respect to a corporate employer, the requisite advance knowledge, authorization, ratification, or act of oppression, fraud, or malice must be attributable to an “officer, director, or managing agent” of the corporation. The Sixth Cause of Action alleges generally that “FORD” possessed the relevant knowledge, concealed the defect, maintained internal databases, and implemented an allegedly cost-saving repair strategy, but does not allege that an officer, director, or managing agent committed, authorized, or ratified the challenged conduct.

Grieves v. Superior Court (1984) 157 Cal.App.3d 159 is instructive. There, the Court of Appeal held that allegations against a corporation were inadequate where the complaint failed to allege facts showing corporate advance knowledge, authorization, or ratification and contained no assertion that an officer, director, or managing agent was personally responsible. The court directed that the punitive-damages allegations be stricken with leave to amend. (*Id.* at 167-168.) The same result is appropriate here. Whether or not Plaintiff must presently identify a particular managing agent by name, the pleading must at least allege ultimate facts establishing the corporate nexus required by Civil Code § 3294(b).

Ford’s alternative reliance on the availability of Song-Beverly civil penalties does not warrant striking punitive damages at the pleading stage. *Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946 distinguished *Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218 and held that Song-Beverly civil penalties and punitive damages may coexist where they punish different conduct—there, post-sale warranty violations supporting the civil penalty and pre-sale concealment supporting punitive damages. (*Anderson*, at 966-969.) The FAC here similarly alleges both pre-sale concealment and post-sale warranty conduct. Any issue concerning duplicative recovery therefore does not justify striking the punitive-damages prayer at the pleading stage.

Accordingly, Ford’s motion to strike Plaintiff’s punitive-damages at paragraph 14, subparagraph (e) is GRANTED with leave to amend, solely because the FAC presently fails to plead sufficient facts satisfying the corporate-liability requirements of Civil Code § 3294(b).

Plaintiff may file and serve a Second Amended Complaint curing that deficiency within 20 days after service of notice of this ruling.

Defendant Ford Motor Company shall give notice.